

to 1923, and those Acts and this Act may be cited together as the Merchant Shipping Acts, 1894 to 1925.

(2) In this Act the expression "the Merchant Shipping Acts" means the Merchant Shipping Acts, 1894 to 1923, and includes any Orders in Council, rules and regulations made thereunder, and the expression "United Kingdom" means Great Britain and Northern Ireland.

CHAPTER 38.

An Act to regulate the Exhibition and Training of
Performing Animals. [30th June 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) No person shall exhibit or train any performing animal unless he is registered in accordance with this Act.

Restriction
on exhibi-
tion and
training of
performing
animals.

(2) Every local authority shall keep a register for the purpose of this Act, and any person who exhibits or trains animals as aforesaid on making an application in the prescribed form to the local authority of the district in which he resides, or if he has no fixed place of residence in Great Britain, to the local authority of such one of the prescribed districts as he may choose, and on payment of the prescribed fee shall be registered under this Act, unless he is a person, who, in pursuance of an order of the court made under this Act, is prohibited from being so registered.

(3) Any application for registration under this Act shall contain such particulars as to the animals and as to the general nature of the performances in which the animals are to be exhibited or for which they are to be trained as may be prescribed, and the particulars so given shall be entered in the register.

(4) The local authority shall give to every person whose name appears on the register kept by them a certificate of registration in the prescribed form containing the particulars entered in the register.

(5) Every register kept under this Act shall at all reasonable times be open for inspection on payment of the prescribed fee, and any person shall on payment of the prescribed fee be entitled to take copies thereof or make extracts therefrom.

(6) Any person entered on the register shall, subject to the provisions of any order made under this Act by any court, be entitled, on making application for the purpose, to have the particulars entered in the register with respect to him varied, and where any such particulars are so varied the existing certificate shall be cancelled and a new certificate issued.

(7) A copy of every certificate of registration issued by a local authority shall be transmitted by the authority to the Secretary of State and shall be available for inspection at all reasonable times subject to payment of the prescribed fee.

Power of
courts to
prohibit or
restrict ex-
hibition
and training
of per-
forming
animals.

2.—(1) Where it is proved to the satisfaction of a court of summary jurisdiction on a complaint made by a constable or an officer of a local authority that the training or exhibition of any performing animal has been accompanied by cruelty and should be prohibited or allowed only subject to conditions, the court may make an order against the person in respect of whom the complaint is made prohibiting the training or exhibition or imposing such conditions thereon as may be specified by the order.

(2) If any person is aggrieved by the making of such an order or a refusal to make such an order, he may appeal to a court of quarter sessions in manner provided by the Summary Jurisdiction Acts.

(3) An order made under this Act shall not come into force until seven days after it is made, or, if an appeal has been entered within that period, until the determination of the appeal.

(4) Any court by which an order is made under this section shall cause a copy of the order to be sent as soon as may be after the order comes into force to the local authority by which the person against whom

the order is made is registered and to the Secretary of State, and shall cause the particulars of the order to be endorsed upon the certificate held by that person, and that person shall produce his certificate on being so required by the court for the purposes of endorsement. A local authority to which a copy of an order is sent under this section shall enter the particulars of the order on the register.

3.—(1) Any officer of a local authority duly authorised in that behalf by the local authority and any constable may— Power to enter premises.

(a) enter at all reasonable times and inspect any premises in which any performing animals are being trained or exhibited, or kept for training or exhibition, and any such animals found therein; and

(b) require any person who he has reason to believe is a trainer or exhibitor of performing animals to produce his certificate.

(2) No constable or such officer as aforesaid shall be entitled under this section to go on or behind the stage during a public performance of performing animals.

4.—(1) If any person—

Offences
and legal
proceedings.

(a) not being registered under this Act exhibits or trains any performing animal; or

(b) being registered under this Act exhibits or trains any performing animal with respect to which or in a manner with respect to which he is not registered; or

(c) being a person against whom an order by a court of summary jurisdiction has been made on complaint under this Act, contravenes or fails to comply with the order in any part of Great Britain, whether within or without the area of jurisdiction of that court; or

(d) obstructs or wilfully delays any constable or officer of a local authority in the execution of his powers under this Act as to entry or inspection; or

- (e) conceals any animal with a view to avoiding such inspection; or
- (f) being a person registered under this Act, on being duly required in pursuance of this Act to produce his certificate under this Act fails without reasonable excuse so to do; or
- (g) applies to be registered under this Act when prohibited from being so registered;

he shall be guilty of an offence against this Act and shall be liable on summary conviction upon a complaint made by a constable or an officer of a local authority to a fine not exceeding fifty pounds.

1 & 2 Geo. 5.
c. 27. (2) Where a person is convicted of an offence against this Act, or against the Protection of Animals Act, 1911, as amended by any subsequent enactment, the court before which he is convicted may in addition to or in lieu of imposing any other penalty—

- (a) if such person is registered under this Act order that his name be removed from the register;
- (b) order that such person shall either permanently or for such time as may be specified in the order be disqualified for being registered under this Act;

and where such an order is made, the provisions of subsections (2), (3) and (4) of section two of this Act shall apply to the order as they apply to an order made under that section.

Interpreta-
tion, rules,
and ex-
penses.

5.—(1) For the purposes of this Act—

The expression “animal” does not include invertebrates:

The expression “exhibit” means exhibit at any entertainment to which the public are admitted, whether on payment of money or otherwise, and the expression “train” means train for the purpose of any such exhibition, and the expressions “exhibitor” and “trainer” have respectively the corresponding meanings:

The expression "local authority" means—

- As respects the City of London, the common council;
- As respects any county borough, the council of the borough;
- As respects any other area, the council of the county:

The expression "prescribed" means prescribed by rules made by the Secretary of State.

(2) The Secretary of State may make rules for prescribing anything which is to be prescribed under this Act, and as to the execution and performance by local authorities of their powers and duties under this Act, and generally for carrying this Act into effect.

(3) Any expenses of a local authority under this Act, so far as not covered by fees, shall be defrayed in the case of the common council of the City of London, out of the general rate; in the case of the council of a county borough, out of the borough fund or borough rate; and in the case of the council of a county, out of the county fund; and the fee for registration shall in no case exceed one guinea.

6. This Act shall apply to Scotland subject to the following modifications:—

Application
to Scotland.

(a) The expression "local authority" means a county council or a town council, and any expenses incurred by any such council under this Act so far as not covered by fees, shall be defrayed, in the case of a county council, out of the general purposes rate, and in the case of a town council, out of the burgh general improvement assessment or any other assessment leviable in equal proportions on owners and occupiers;

(b) References to a court of summary jurisdiction shall be construed as references to the sheriff; references to an appeal to quarter sessions shall not apply; and the Protection of Animals 2 & 3 Geo. 5. (Scotland) Act, 1912, shall be substituted for c. 14. the Protection of Animals Act, 1911.

Exceptions
from appli-
cation of
Act.

7. This Act shall not apply to the training of animals for bona fide military, police, agricultural or sporting purposes, or the exhibition of any animals so trained.

Short title,
commence-
ment, and
extent.

8.—(1) This Act may be cited as the Performing Animals (Regulation) Act, 1925.

(2) This Act shall not apply to Northern Ireland.

(3) This Act shall come into operation on the first day of January, nineteen hundred and twenty-six.

CHAPTER 39.

An Act to facilitate the preparation of Agricultural Statistics.
[30th June 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power to
require
returns.

1.—(1) The Minister of Agriculture and Fisheries may annually, by notice served on the occupier of any agricultural land in England or Wales or on the person having the management on behalf of the occupier of any such land, require him to make within such time, not being less than twenty-one days, as is specified in the notice, and in such form and to such person as the Minister may prescribe by regulations made under this Act, a return in writing of the acreage of land in cultivation, specifying the acreage of the several crops thereon, and of the acreage of land in fallow or used for grazing and of the live stock on the land, and of the persons employed thereon, showing separately the numbers of persons in regular and in casual employment, and, if the occupier is also the owner of the land, that fact shall be stated in the return.

The return shall be made with respect to the conditions existing on such day as may be specified in the notice.

(2) No individual return or part of a return made under this Act shall be used, published or disclosed